

[Doe v. Duncanville Indep. Sch. Dist., 70 F.3d 402\(1995\)](#)

Issue: Did the Duncanville Independent School District violate the Establishment Clause by allowing its employees to lead prayers on school grounds, force students to sing religious songs, and distribute Gideon Bibles in schools?

Facts: A student, Jane Doe, in the Duncanville Independent School District, and her father went to the district court for a temporary restraining order and preliminary injunction against the DISD for forcing the student to pray and sing religious songs in school choir. The district court forbade the DISD employees from leading, encouraging, promoting or participating in prayer with students on school grounds. DISD appealed the preliminary injunction. The United States Court of Appeals agreed with the district court to prevent the employees from participating in student-initiated prayers. However, the United States Court of Appeals allowed the DISD to continue singing religious song and distributing Gideon Bibles in schools.

Holding: In the majority opinion, the court concluded that the Duncanville Independent School District did not violate the Establishment Clause by allowing its employees to force students to sing religious songs and distribute Gideon Bibles in schools. However, they found that the DISD did violate the Establishment Clause by allowing its employees to lead prayers on school grounds.

Reasoning: The Duncanville Independent School District felt that they would be violating their employees' rights to freedom of religion by prohibiting them from participating in student prayer. However, by allowing the employees to participate in student prayer the DISD is signaling an unconstitutional endorsement of religion. They reached a middle ground by allowing students to pray together, as long as it is done without school participation or supervision.

The Duncanville Independent School District's theme song "The Lord Bless You and Keep You" does not advance or endorse religion. While it does have religious connotations, this song is well-rounded in teaching students how to sight read and sing a capella, making it useful in choir class. The court felt that imposing restrictions on singing religious songs would not only make it difficult for schools to find non-religious alternatives but that would also insinuate form of hostility toward religion, rather than the neutrality that should exist between church and state.

While Jane Doe was never in a specific class where Gideon Bibles were distributed, her father argued that he could challenge this practice because he pays taxes to support the DISD. The court found that his status as taxpayer was not enough to allow him to fight this argument. The court also noted that the Gideon's provide the Bibles themselves by placing them on a table in the front of the school, never approaching the students. They also found that table the Bibles were placed on wasn't purchased specifically for holding the Bibles.

Dissent: Judge Edith H. Jones concurs with all decisions except for preventing employees from participating in student prayer. She argues that the courts should not control how DISD representatives privately react to student prayers. She also disagrees with the decision to prohibit representatives from supervising student prayers, as she believes all events on school grounds should inevitably be supervised.

Dissent: Judge Mahon concurs with all decisions except for the ruling that allows the DISD to continue to allow religious songs to be taught in school choir. He believes allowing the DISD to continue using “The Lord Bless You and Keep You” as their theme song imposes religion onto the students. He argues that the students were never given an option for a theme song; rather, they’ve been told this is tradition.

[S.D. v. St. Johns County Sch. Dist., 632 F. Supp. 2d 1085\(2009\)](#)

Issue: Did St. Johns County School District's decision to have third graders perform the song "In God We Still Trust" at their end-of-year assembly violate the First and Fourth Amendments to the Constitution?

Facts: Elementary school students at St. Johns County School District were told that if they did not want to sing the song "In God We Still Trust" at their assembly, they would have to sit out entirely. The court viewed this as penalizing the students for exercising their right to object. The defendants brought up cases that were irrevocably turned down because of the difference in ages between the students in the previous cases. The court emphasized the young age of these eight-year-old students and how sensitive they are to signs of disapproval and disappointment from their peers and elders. The court also emphasized the lyrics of the song itself. "In God We Still Trust" is a more modern country song with lyrics that patronize those whose beliefs do not align with Christianity. The court ordered the song to be removed from the assembly performance and prohibited the song from being taught in the future.

Holding: Yes, the court ruled that St. Johns County School District's decision to have third graders perform the song "In God We Still Trust" at their end-of-year assembly violates the First and Fourth amendments to the Constitution.

Reasoning: The parents of third-grade students felt that their children's freedoms were being violated by the forceful manner in which the teachers were pushing "In God We Still Trust" to be sung in class. When trying to determine if the ruling would remain secular, the courts used the *Lemon v. Kurtzman* test. They determined that if they refrained from prohibiting the song, the courts would actually be promoting religion, which fails the Lemon test.

The song "In God We Still Trust" contains lyrics such as "there is no separation, we are one nation under Him," which implies that there is no separation among church and state. It is laid out very simply in the Constitution that separation between Church and State is essential to the success of our country. By giving students the only options of either singing or being excluded from the end-of-year assembly, the school is advancing religious beliefs onto young children.

St. Johns County School District argued that in *Doe v. Duncanville*, the court permitted religious songs to be sung in school choir because the songs had great attributes for teaching choir skills. This case is different because the song in *Duncanville* had lyrics drawn from historical biblical text; unlike the song "In God We Still Trust" which is written in a modern tone with antagonizing lyrics. Students that decide not to sing this song would become outcasts which is terrible for their early development.

St. Johns County School District fought to avoid prohibiting the song as long as they provided a signed affidavit sworn by the principal. This was the only evidence they presented to avoid prohibiting the song, thus leading the court to decide to forbid the song from schools. The court did not have enough evidence to believe that the same wrongful actions would not reoccur without a concrete ruling.

Analysis and Synthesis

After reading the *Doe v. Duncanville* and *S.D. v. St. Johns County School District* cases, I've ultimately decided that forcing students to sing a song with religious connotation is morally wrong. While reading the *Duncanville* case, I was disappointed to find that the courts ruled in favor of allowing the school district to continue to teach their theme song, "The Lord Bless You and Keep You." Much of Judge Mahon's dissent against this ruling had points that would be used in the *S.D. v. St. Johns County School District* case.

In the *S.D. v. St. Johns* case the school wanted "In God We Still Trust" to be sung as the closing for their end-of-year assembly. If students didn't want to sing this song they would not be allowed to attend the assembly, making them outcasts from everyone else. "In God We Still Trust" contains lyrics that are aggressive towards those who don't believe in God. These factors are what caused the parents of third-grade students to file suit against the St. Johns County School District in Florida.

In the *Duncanville* case the school teachers explained how the song "The Lord Bless You and Keep You" had been their theme song for over twenty years. The choir teacher stated how this song has been a school tradition and it never occurred to him to ask students if they wanted to sing something else. I understood the point the choir director was trying to make when he mentioned how this song is fundamental in teaching sight reading and a capella; however, I find it hard to believe that he couldn't find another song easily.

The lyrics in "In God We Still Trust" implied that there is no separation between church and state and also criticized anyone who wanted to "push Him out". These lyrics were so bold that the courts couldn't deny the fact that if they allowed the song to be taught, they would be taking part in promoting religious beliefs. Unlike "The Lord Bless You and Keep You", St. Johns song was modernized and had lyrics that didn't exactly contain biblical text. Although the song "The Lord May Bless You and Keep You" is more biblically accurate and older than "In God We Still Trust", both songs push religious ideas onto the students forced to sing them.

The St. Johns County school district thought it was fair to offer elementary school students to either sing "In God We Still Trust" or not allow them to participate in the end-of-year assembly. I don't think it's fair to treat a child's refusal to sing at a school assembly as a consequence. In Mira Fox's article, she explains how her grandfather felt like an outsider and began resenting his own religion when he would sit out of singing Christmas songs in school. Mira recognized this was a common occurrence and decided to reach out to various communities for additional experiences. Through her surveys she found teachers would threaten students with failing grades, students would bully those who chose to sit out, and school administrators would often times retaliate against students that asked for accommodations.

The Duncanville school district in Dallas, Texas is known for promoting its religious views within the community, so it wasn't all that surprising to find they didn't offer any accommodations for students who chose not to sing "The Lord Bless You and Keep You." In the Pew Research Group's study they found that courts often believe that no student should be forced to sing or play music that offends their own religious beliefs. They also found that courts rule public schools must allow students the option to not participate. Unfortunately this was not the case for Duncanville. The courts somehow trusted the choir director when he argued how significant the song is in teaching students music.

While doing research on these cases, I came across a guideline for choir directors from the National Association for Music Education. This guideline provides questions choir directors should consider when selecting songs that could promote religious beliefs. For example, “Are the traditions of different people shared and respected?” If the choir directors from Duncanville and St. Johns County considered the questions provided by the NAFME, they would’ve hopefully recognized the bias in their song selections and realized these songs were unsuitable for teaching.

A key factor in both the Duncanville and the St. Johns cases was the age of the students involved. I believe the courts felt more sympathy towards the students in the St. Johns case because they were only eight-years-old, compared to the twelve-year-olds in the Duncanville case. As elementary school students, these eight-year-olds are particularly vulnerable to bullying and feelings of exclusion. Any type of isolation or shame could have life-long effects on these young students. The Mclean hospital in Massachusetts published an article on the in-depth effects of bullying on children. These effects include loss of self-confidence, increased self-criticism, and increased self-isolation. It’s terrible that these disheartening views could be directed at either age group of children in these cases for simply not wanting to sing a song.

In conclusion, the negative effects of forcing students to sing religious songs in school choir greatly outnumber any benefits. Not only is it morally wrong, but it also risks of violating the First and Fourteenth Amendments to the Constitution. The argument that some religious songs are chosen due to their importance in teaching music is weak. Choir directors should research their song choices, ask students if they want to sing the song, or check their song for bias using the NAFME questions. If the song they chose is unfit the choir director should have endless options for a replacement song. As Judge Mahon stated, if a school district claims that a religious song is necessary to unify the community, it is essentially using the school choir to promote religious faith. Although the courts didn’t recognize this in the Duncanville case, it was reassuring to see the ruling in the St. Johns Case against their song choice.

Sources

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